

Service Agreement

SERVICE AGREEMENT

This Service Agreement ("Agreement") is entered into on **15 June 2025 BETWEEN ABC Tech Solutions Pvt. Ltd.**, a company incorporated under the laws of India, having its registered office at Bengaluru, Karnataka ("Service Provider") AND **Sharma Retail Enterprises**, a sole proprietorship having its principal place of business at Jaipur, Rajasthan ("Client")

1. Scope of Services

The Service Provider shall provide website development and maintenance services to the Client, including design, deployment, and basic technical support, as specified in Schedule A.

2. Term and Duration

This Agreement shall commence on **1 July 2025** and shall remain in force for a period of **24 months**, unless terminated earlier in accordance with this Agreement.

3. Fees and Payment Terms

- The Client shall pay the Service Provider a total consideration of **INR 6,00,000**, payable in quarterly installments of **INR 75,000** each.
- Late payments beyond **15 days** shall attract a penalty of **2% per month** on the outstanding amount.

4. Obligations of the Client

The Client shall:

- a) Provide all necessary content and approvals within reasonable time
- b) Ensure timely payment of fees
- c) Appoint a single point of contact for coordination

5. Obligations of the Service Provider

The Service Provider shall:

- a) Deliver the website within **90 days** from the effective date
- b) Ensure the website is functional and free from major defects
- c) Provide post-launch support for a period of **6 months**

6. Intellectual Property

- All intellectual property rights in the website, including source code and designs, shall vest exclusively with the Service Provider.
- The Client is granted a non-transferable, non-exclusive license to use the website during the term of this Agreement.

7. Confidentiality

Each party shall keep confidential all proprietary or sensitive information received from the other party and shall not disclose such information to any third party without prior written consent.

8. Indemnity

The Client shall indemnify and hold harmless the Service Provider against any losses, claims, or damages arising out of misuse of the website by the Client.

9. Termination

The Service Provider may terminate this Agreement at any time by providing **30 days' written notice**. The Client may terminate this Agreement only in the event of a material breach by the Service Provider, subject to a cure period of **60 days**.

10. Auto-Renewal

Upon expiry of the initial term, this Agreement shall automatically renew for successive periods of **12 months**, unless either party provides written notice of non-renewal at least **45 days** prior to the expiry date.

11. Governing Law and Jurisdiction

- This Agreement shall be governed by the laws of India.
- The courts of **Bengaluru, Karnataka** shall have exclusive jurisdiction.

12. Arbitration

Any disputes arising out of or in connection with this Agreement shall be resolved through arbitration conducted in **Bengaluru**, in accordance with mutually agreed procedures.

13. Limitation of Liability

In no event shall the Service Provider's total liability exceed the total fees paid under this Agreement.

14. Force Majeure

Neither party shall be liable for failure to perform obligations due to events beyond reasonable control, including natural disasters, strikes, or government actions.

15. Entire Agreement

This Agreement constitutes the entire understanding between the parties and supersedes all prior communications.

SIGNATURES

For ABC Tech Solutions Pvt. Ltd.

Authorized Signatory: _____

For Sharma Retail Enterprises

Authorized Signatory: _____